

Tentative Rulings for August 17, 2026 Department M302

**To request oral argument, you must notify
Judicial Secretary Lauren Garcia at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department M302 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

COUNSEL AND SELF-REPRESENTED PARTIES ARE ENCOURAGED TO APPEAR AT ANY LAW AND MOTION DEPARTMENT IN-PERSON OR VIA ZOOM VIDEO WHEN REQUESTING ORAL ARGUMENTS.

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252, 1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **161 672 7660**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVME2609493	IN RE: LUIS CASTRO	PETITION FOR APPROVAL OF TRANSFER OF STRUCTURED SETTLEMENT PAYMENT RIGHTS

Tentative Ruling: Grant.

2.

CASE #	CASE NAME	HEARING NAME
CVME2513330	HOLLOWAY VS RABINEAU	MOTION TO EXTEND DISCOVERY PERIOD

Tentative Ruling: Deny— the motion cites no proper legal basis on which to extend the deadline for responding to discovery requests. Discovery procedures are governed by the Civil Discovery Act (Code Civ. Proc., § 2016 et seq.) Plaintiff has mistakenly cited Code of Civil Procedure section 2024.050, which authorizes a party to bring a motion for leave to complete discovery proceeding past the statutory discovery cut-off. This section does not authorize the Court to extend the deadline for responding to discovery request.

Furthermore, the motion is procedurally defective. Plaintiff has failed to comply with Code of Civil Procedure section 1010 – the motion is not accompanied by a written notice of motion. The motion is also defective for failing to include a memorandum in support of the motion pursuant to California Rules of Court, rule 3.1113 setting forth the ground on which the motion is based. “The court may construe the absence of a memorandum as an admission that the motion ... is not meritorious and cause for its denial....” (Cal. Rules of Court, rule 3.1113(a).)

3.

CASE #	CASE NAME	HEARING NAME
CVME2508660	RAMOS V. ROLL EM UP	EX PARTE

Tentative Ruling: Grant in part. Set aside the dismissal. Set a CMC on September 30, 2026. Sanction \$250 for the OSC on July 9, 2026, for failing to file a Local Rule 3116 Declaration. Set an OSC re: failure to file all POS and for Responsive Pleadings on September 30, 2026 for sanctions not to exceed \$1,500 and/or striking the pleadings.

4.

CASE #	CASE NAME	HEARING NAME
CVME2508833	HERNANDEZ V. JAIN	TSC

Tentative Ruling: Set a 7-day trial on June 4, 2027. All parties must strictly comply with Local Rule 3401 and should familiarize themselves with *Reales Investment v. Johnson* (2020) 55 Cal.App.5th 463. Failure to comply with Local Rule 3401 may result in the imposition of evidentiary sanctions. The parties are directed to download, review, and follow the trial binder preparation pamphlet available on the court’s website. All experts shall be scheduled for deposition no later than 20 days prior to the first day of trial. A Zoom MSC will be scheduled and the parties will be notified when the date is set.

5.

CASE #	CASE NAME	HEARING NAME
CVME2516034	FOX V. FCA	CMC

Tentative Ruling: Continue CMC to October 21, 2026 and set an OSC re: Responsive Pleadings/Request for Default, with sanctions not to exceed \$1,500 and/or striking the pleading.